

Anish Thakur vs Shiwani Jaswal on 26 April, 2024

Bench: Tarlok Singh Chauhan, Sushil Kukreja

IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA FAO (FC) No. 07 of 2021 Reserved
on: 23.04.2024 Date of decision: 26.04.2024 .

_____ Anish ThakurAppellant.

Versus Shiwani JaswalRespondent.

_____ Coram The Hon'ble Mr.
Justice Tarlok Singh Chauhan, Judge.

The Hon'ble Mr. Justice Sushil Kukreja, Judge.

W h e t h e r a p p r o v e d f o r r e p o r t i n g ? Y e s .
_____ For the appellant: Mr. Tara
Singh Chauhan, r Advocate.

For the respondent: Ms. Poonam Gehlot, Advocate.

Sushil Kukreja, Judge.

The appellant, who was the petitioner before the learned District Judge, Family Court, Mandi, H.P. (hereinafter referred to as the "learned Court below") has maintained the instant appeal under Section 19 of the Family Court Act, 1984, against the judgment and decree dated 31.10.2020, passed by the learned Court below, in HMA Petition No. 352/19/17, with a prayer to set-aside the same by allowing the instant petition.

2. The brief facts of the case are that the appellant-

Whether reporters of Local Papers may be allowed to see the judgment?

Anish Thakur (hereinafter referred to as "the petitioner") filed a petition before the learned Court below under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 (for short "the .

Act") seeking dissolution of marriage from his wife Smt. Shiwani Jaswal (respondent herein) by a decree of divorce.

The petitioner averred that he and the respondent solemnized marriage on 07.05.2015, according to Hindu rites and customs, but the respondent remained in the company of the petitioner for two months only. Out of their wed-lock, on 09.04.2016, a male child was born and the child is in the care and custody of the respondent since his birth.

Subsequently, the petitioner came to know that the respondent was having friendship with a person. The petitioner found respondent on telephonic call with a person during the odd hours of the night. On being asked by the petitioner, the respondent divulged that she was unwilling to marry him and was willing to marry another person, namely, Shri Sanjay Bhardwaj. As per the petitioner, the respondent divulged to him that as Shri Sanjay Bhardwaj belonged to another caste so her parents objected to their marriage and she married the petitioner under the pressure of her parents.

Despite previous relation of the respondent have ignored all these facts and has suggested the respondent to live a new life by keeping in view the dignity and honor of her husband and her in-laws. On 12.03.2016, on the demand of the .

respondent, the petitioner left her at her parental house and at that time the respondent was pregnant. The respondent gave birth to a male child at Sanjeevan Hospital Mandi, H.P., where all the arrangements were made by the petitioner and his family and the petitioner paid all the dues. After the delivery, the petitioner requested the respondent to come to her matrimonial house, however, the respondent and her mother assured the petitioner that after some time the petitioner would come to her matrimonial house. As per the petitioner, the respondent also assured him that 'Gantrela' and 'Namkaran' ceremonies of the new born baby would be performed in the matrimonial house. The respondent went to her parental house alongwith the child and for a night the petitioner also stayed with them. The petitioner further averred that he purchased clothes etc. for the new born baby and also gave some money to the respondent and on 11.04.2016 the petitioner came back to his house.

Thereafter, the petitioner tried to contact the respondent on her as well as on the mobile of his mother-in-law, but his calls were not attended. Ultimately, when the petitioner failed to contact the respondent, he sent a text message to the respondent on 18.04.2016 conveying to be ready .

alongwith the child that he was coming to take them back.

On 18.04.2014, around 11:00 a.m., the petitioner reached the parental house of the respondent and requested the respondent to accompany him alongwith the child so that 'Gantrela' and 'Namkaran' ceremonies of the new born baby could be performed to on 22.04.2016. However, respondent, at the instance of her parents, refused to join the r the company of the petitioner and also refused for the above ceremonies. As per the petitioner, due to the act and conduct of the respondent and her parents, the petitioner and his family members suffered humiliation and the name of the new born child had not been disclosed to him. The petitioner further averred that on 20.04.2016, he tried to contact the respondent telephonically, but the respondent did not answer his call. The petitioner and her family members have performed 'Gantrela' and 'Namkaran' ceremonies of the new born child in the absence of the son and his mother as the ceremonies were pre-fixed on 22.04.2016. As per the petitioner, the act and conduct of the respondent amounts to mental as well as physical cruelty towards the petitioner. On 15.03.2017 the petitioner again went to the parental house of the respondent to bring her back, as on 09.04.2017 the first .

birthday of their son was falling, but the respondent and her parents refused to talk to him and they did not allow him to enter their house. As per the petitioner, he waited for four hours in the courtyard, but he was not allowed to enter the house and lastly he came back. On 31.03.2017 the father of the petitioner alongwith two respectable persons of the locality went to the house of the respondent for persuading them to send the respondent with the child, but the respondent and her parents again refused. Subsequently, the petitioner sent a legal notice to the respondent, which was not responded by her. As per the petitioner, the act and conduct of the respondent amounts to mental as well as physical cruelty. Ultimately, the petitioner filed a petition seeking under Section 13(1)(ia)(ib) of the Hindu Marriage Act, seeking dissolution of marriage.

3. The respondent contested the petition by filing reply, wherein she raised preliminary objections of maintainability, cause of action and estoppel etc. As per the respondent, after the marriage, she started living in her matrimonial home, but she was not treated nicely by the petitioner and his parents. The respondent further averred that she was being treated like a slave and tortured badly on .

the demand of car as dowry. She was not given proper food and clothes and was not even allowed free moments. When she was in her advance stage of pregnancy, she was turned out from her matrimonial house and the petitioner and his parents threatened her with dire consequences. As per the respondent, false accusations of unchastity were leveled and on this ground merciless beatings were given to her and she was tortured and insulted. The respondent further averred that the allegation of friendship with another person was totally wrong and she denied any telephonic conversation with anyone. The petitioner did not provide any maintenance to the respondent and her child. As the petitioner wanted to get rid of the respondent, he came up with the defence that the petitioner had friendship with another person. The respondent also averred that under the compelling circumstances 'Gantrela' and 'Namkaran' ceremonies were performed at her parental house. The petitioner never tried to take the respondent and the child to his house. Lastly, the respondent prayed for dismissal of the petition.

4. The petitioner filed rejoinder to the reply filed by the respondent, wherein he denied the stand taken by the respondent and reiterated the averments made in the .

petition.

5. On 25.09.2018, the learned Court below framed the following issues:

"1. Whether the act and conduct of the respondent amounts to cruelty as alleged?
OPP

2. Whether the respondent has deserted the petitioner without any reasonable cause as alleged? OPP

3. Whether petition is not maintainable as alleged? OPR

4. Whether the petitioner has not approached this Court with the clean hands as alleged?

OPR

5. Whether the petitioner is estopped by his own act and conduct to file the petition as alleged? OPR

6. Relief."

After deciding issues No. 1 & 2 against the petitioner, issue No. 3 to 5 against the respondent, the petition was dismissed.

6. Feeling aggrieved, the petitioner filed the instant appeal under Section 19 of the Family Court Act, 1984, against the impugned judgment with a prayer for setting-

aside the same by allowing the instant petition.

7. We have heard the learned Counsel for the .

appellant, learned counsel for the respondent and carefully examined the entire record.

8. The petitioner has filed the instant petition on the grounds of desertion and cruelty. Admittedly, the petitioner had solemnized marriage with the respondent on 07.05.2015 and a male child was born out of their wed-lock on 09.04.2016. The petitioner has filed the petition for divorce on 05.07.2017 on the grounds of desertion and cruelty. As per Section 13(1)(ib) of the Hindu Marriage Act, 1955, separation of two years between the parties is essential for filing divorce petition on the ground of desertion. At this stage, it would be relevant to reproduce Section 13(1)(ib) of the Hindu Marriage Act, which is as under:

"13. Divorce-.(1) Any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party-

... ..

(ib) has deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petition; or"

... ..

9. The above provision makes its clear that the separation of continuous two years immediately preceding .

the presentation of the petition is essential for seeking divorce on the ground of desertion. However, as per the admitted case of the parties, the marriage was solemnized on 07.05.2015 and the child was born on 09.04.2016, as such it cannot be said that the parties were living separately for a continuous period of not less than two years immediately preceding the presentation of the petition.

Hence, it can be safely held that the ground of desertion was not available to the petitioner on the date when the petition for divorce was filed.

10. Another ground taken by the petitioner for filing the instant petition is that the respondent has treated him with cruelty. The expression "cruelty" is not defined in the Act. The legal conception of cruelty and the kind of degree of cruelty necessary to amount to a matrimonial wrong has not been defined under the Hindu Marriage Act. It has been used in Section 13(i) (i-a) of the Act 1955 in the context of human conduct or behavior in relation to or in respect to matrimonial duties or obligations. It is a course of conduct of one which is adversely affecting the other. The cruelty may be mental or physical. It may be intentional or unintentional.

If it is physical, it is question of fact and degree. If it is .

mental, the inquiry must begin as to the nature of cruel treatment and then as to the impact of such treatment on the mind of the spouse as to whether it caused reasonable apprehension that it would be harmful or injurious to live with other. It is a matter of inference to be drawn by considering the nature of the conduct and its effect on the complaining spouse. These principles find mention in the law laid down by Hon'ble Supreme Court in the case of Shobha Rani Vs. Madhukar Reddi (1988) 1 SCC 105 as under:

"4.

Section 13(1) (i-a) uses the words "treated the petitioner with cruelty".

The word "cruelty" has not been defined. Indeed it could not have been defined. It has been used in relation to human conduct or human behaviour. It is the conduct in relation to or in respect of matrimonial duties and obligations. It is a course of conduct of one which is adversely affecting the other. The cruelty may be mental or physical, intentional or unintentional. If it is physical the court will have no problem to determine it. It is a question of fact and degree. If it is mental the problem presents difficulty. First, the enquiry must begin as to the nature of the cruel treatment.

Second, the impact of such treatment on the mind of the spouse. Whether it caused reasonable apprehension that it would be harmful or injurious to live with the other. Ultimately, it is a matter of inference to be drawn by taking into account the nature of the conduct and its effect on the .

complaining spouse. There may, however, be cases where the conduct complained of itself is bad enough and per se unlawful or illegal. Then the impact or the injurious effect on the other spouse need not be enquired into or considered. In such cases, the cruelty will be established if the conduct itself is proved or admitted.

5. It will be necessary to bear in mind that there has been marked change in the life around us. In matrimonial duties and responsibilities in particular, we find a sea change.

r They are of varying degrees from house to house or person to person.

Therefore, when a spouse makes complaint about the treatment of cruelty by the partner in life or relations, the court should not search for standard in life. A set of facts stigmatised as cruelty in one case may not be so in another case.

The cruelty alleged may largely depend upon the type of life the parties are accustomed to or their economic and social conditions. It may also depend upon their culture and human values to which they attach importance. We, the judges and lawyers, therefore, should not import our own notions of life. We may not go in parallel with them.

There may be a generation gap between us and the parties. It would be better if we keep aside our customs and manners. It would be also better if we less depend upon precedents. Because as Lord Denning said in *Sheldon v. Sheldon* [(1966) 2 All ER 257, 259]] "the categories of cruelty are not closed". Each case may be different. We deal with the conduct of human beings who are not generally similar. Among the human beings there is no limit to the kind of conduct which may constitute cruelty. New type of cruelty may .

crop up in any case depending upon the human behavior, capacity or incapability to tolerate the conduct complained of. Such is the wonderful (sic) realm of cruelty.

6. These preliminary observations are intended to emphasize that the court in matrimonial cases is not concerned with ideals in family life. The court has only to understand the spouses concerned as nature made them, and consider their parciular grievance. As Lord Reid observed in *Gollins vs. Gollins* [(1963) 2 All ER 966, 972]]:

In matrimonial affairs we are not dealing with objective standards, it is not a matrimonial offence to fall below the standard of the reasonable man (or the reasonable woman). We are dealing with this man or this woman.

7. Chandrachud, J. (as he then was) in *N.G. Daatane v. S Dastane*[(1975) 2 SCC 326 said: (SCC p. 338, para 32) The Court has to deal, not with an ideal husband and an ideal wife (assuming any such exist) but with the particular man and woman before it. The ideal couple or a near-ideal one will probably have no occasion to go to a matrimonial court for, even if they may not be able to drown their differences, their ideal attitudes may held them overlook or gloss over mutual faults and failures.

.....

18. Section 13(1)(i-a)

of the Hindu Marriage Act provides that the party has after solemnization of the .

marriage treated the petitioner with cruelty. What do these words mean?

What should be the nature of cruelty? Should it be only intentional, willful or deliberate? Is it necessary to prove the intention in matrimonial offence? We think not. We have earlier said that cruelty may be of any kind and any variety. It may be different in different cases. It is in relation to the conduct of parties to a marriage. That conduct which is complained of as cruelty by one spouse may not be so far the other spouse. There may be instances of cruelty by the unintentional but inexcusable conduct of any party. The cruel treatment may also result by the cultural conflict of the spouse. In such cases, even if the act of cruelty is established, the intention to commit suicide cannot be established. The aggrieved party may not get relief. We do not think that that was the intention with which the Parliament enacted Section 13(1)(i-a) of the Hindu Marriage Act. The context and the set up in which the word 'cruelty' has been used in the section, seems to us, that intention is not a necessary element in cruelty. That word has to be understood in the ordinary sense of the term in matrimonial affairs. If the intention to harm, harass or hurt could be inferred by the nature of the conduct or brutal act complained of, cruelty could be easily established. But the absence of intention should not make any difference in the case, if by ordinary sense in human affairs, the act complained of could otherwise be regarded as cruelty."

11. Expressing similar view as aforesaid and following the decision in the case of Shobha Rani (supra), Hon'ble Supreme Court in the case of V. Bhagat v D. Bhagat (1994) 1 SCC 337 (para 16) broadly defined mental cruelty, as under:

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"16. Mental cruelty in Section 13(1)(i-a) can broadly be defined as that conduct which inflicts upon the other party such mental pain and suffering as would make it not possible for that party to live with the other. In other words, mental cruelty must be of such a nature that the parties cannot reasonably be expected to live together. The situation must be such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with the other party. It is not necessary to prove that the mental cruelty is such as to cause injury to the health of the petitioner. While arriving at such conclusion, regard must be had to the social status, educational level of the parties, the society they move in, the possibility or otherwise of the parties ever living together in case they are already living apart and all other relevant facts and circumstances which it is neither possible nor desirable to set out exhaustively. What is cruelty in one case may not amount to cruelty in another case. It is a matter to be determined in each case having regard to the facts and circumstances of that case. If it is a case of accusations and allegations, regard must also be had to the context in which they were made."

12. In Parvati vs. Shiv Ram & another, 1988 (2) Shimla Law Cases 204, it has been held as under:

"13. Acts of "cruelty" have to be specifically pleaded. In absence of such pleadings it would be impossible for the answering .

spouse to effectively meet the allegations. If specific allegations are not made with sufficient details no amount of evidence can cure the defect for it cannot be looked into See Smt. Maya v. Brij Nath, AIR 1982 Del 240; Om Parkash v. Smt. Rajni, AIR 1988 Del 107. The cruelty as a ground for divorce contemplated in section 13(1)(i-a) is a conduct of such nature that the petitioner cannot reasonably be expected to live with the respondent. See Dr. Kesharao Krishnaji Londhe v. Mrs. r Nisha Londhe, AIR 1984 Bom 413 (FB); Varinder v. Major Ranjit Singh, ILR 1985 HP 807.

14. If the grant of a decree of divorce on the ground of cruelty depends upon a conclusion of this nature, it is obvious that the pleadings in that regard should be clear and specific so that the answering spouse may be in a position to meet the case of the petitioner."

13. In Savitri Pandey Vs. Prem Chandra Pandey, (2002) 2 SCC 73, the Apex Court while dealing with cruelty in Para 6 held as under :-

"6. Treating the petitioner with cruelty is a ground for divorce under Section 13(1)(ia) of the Act. Cruelty has not been defined under the Act but in relation to matrimonial matters it is contemplated as a conduct of such type which endangers the living of the petitioner with the respondent. Cruelty consists of acts which are dangerous to life, limb or health. Cruelty for the purpose of the Act .

means where one spouse has so treated the other and manifested such feelings towards her or him as to have inflicted bodily injury, or to have caused reasonable apprehension of bodily injury, suffering or to have injured health. Cruelty may be physical or mental. Mental cruelty is the conduct of other spouse which causes mental suffering or fear to the matrimonial life of the other. "Cruelty", therefore, postulates a treatment of the petitioner with such cruelty as to cause a reasonable apprehension in his or her mind that it would be harmful or injurious for the petitioner to live with the other party. Cruelty, however, has to be distinguished from the ordinary wear and tear of family life. It cannot be decided on the basis of the sensitivity of the petitioner and has to be adjudged on the basis of the course of conduct which would, in general, be dangerous for a spouse to live with the other. In the instant case both the trial court as well as the High Court have found on facts that the wife had failed to prove the allegations of cruelty attributed to the respondent. Concurrent findings of fact arrived at by the courts cannot be disturbed by this Court in exercise of powers under Article 136 of the Constitution of India. Otherwise also the averments made in the petition and the evidence led in support thereof clearly shows that the allegations, even if held to have been proved, would only show the sensitivity of the appellant with respect to the conduct of the respondent which cannot be termed more than .

ordinary wear and tear of the family life."

14. The Apex Court in depth had examined the word "cruelty" in the case of Samar Ghosh Vs. Jaya Ghosh, 2007 (4) SCC 511 in Paragraph nos.38, 39, 40, 41, 42 and 43 which are as under:-

"38. Before we critically examine both the judgments in the light of settled law, it has become imperative to understand and comprehend the concept of cruelty.

39. The Shorter Oxford Dictionary defines 'cruelty' as 'the quality of being cruel; disposition of inflicting suffering; delight in or indifference to another's pain; mercilessness; hard-heartedness'.

40. The term "mental cruelty" has been defined in the Black's Law Dictionary [8th Edition, 2004] as under:

"Mental Cruelty - As a ground for divorce, one spouse's course of conduct (not involving actual violence) that creates such anguish that it endangers the life, physical health, or mental health of the other spouse."

41. The concept of cruelty has been summarized in Halsbury's Laws of England [Vol.13, 4th Edition Para 1269] as under:

"The general rule in all cases of cruelty is that the entire .

matrimonial relationship must be considered, and that rule is of special value when the cruelty consists not of violent acts but of injurious reproaches, complaints, accusations or taunts. In cases where no violence is averred, it is undesirable to consider judicial pronouncements with a view to creating certain categories of acts or conduct as having or lacking the nature or quality which renders them capable or incapable in all circumstances of amounting to cruelty; for it is the effect of the conduct rather than its nature which is of paramount importance in assessing a complaint of cruelty.

Whether one spouse has been guilty of cruelty to the other is essentially a question of fact and previously decided cases have little, if any, value. The court should bear in mind the physical and mental condition of the parties as well as their social status, and should consider the impact of the personality and conduct of one spouse on the mind of the other, weighing all incidents and quarrels between the spouses from that point of view; further, the conduct alleged must be examined in the light of the complainant's capacity for endurance and the extent to which that capacity is known to the other spouse. Malevolent intention is not essential to .

cruelty but it is an important element where it exists."

42. In 24 American Jurisprudence 2d, the term "mental cruelty" has been defined as under:

"Mental Cruelty as a course of unprovoked conduct toward one's spouse which causes embarrassment, humiliation, and anguish so as to render the spouse's life miserable and unendurable.

r The plaintiff must show a course of conduct on the part of the defendant which so endangers the physical or mental health of the plaintiff as to render continued cohabitation unsafe or improper, although the plaintiff need not establish actual instances of physical abuse."

43. In the instant case, our main endeavour would be to define broad parameters of the concept of 'mental cruelty'. Thereafter, we would strive to determine whether the instances of mental cruelty enumerated in this case by the appellant would cumulatively be adequate to grant a decree of divorce on the ground of mental cruelty according to the settled legal position as crystallized by a number of cases of this Court and other Courts."

15. Further the Apex Court in case of Samar Ghosh (supra) laid down the guidelines to enumerate some instances of human behaviour which may be relevant in dealing with the case of 'mental cruelty', paragraph No.101 of .

the judgment is extracted herein as under:-

"101. No uniform standard can ever be laid down for guidance, yet we deem it appropriate to enumerate some instances of human behaviour which may be relevant in dealing with the cases of 'mental cruelty'. The instances indicated in the succeeding paragraphs are only illustrative and not exhaustive.

(i) On consideration of complete matrimonial life of the parties, acute mental pain, agony and suffering as would not make possible for the parties to live with each other could come within the broad parameters of mental cruelty.

(ii) On comprehensive appraisal of the entire matrimonial life of the parties, it becomes abundantly clear that situation is such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with other party.

(iii) Mere coldness or lack of affection cannot amount to cruelty, frequent rudeness of language, petulance of manner, indifference and neglect may reach such a degree that it makes the married life for the other spouse absolutely intolerable.

(iv) Mental cruelty is a state of mind. The feeling of deep anguish, disappointment, frustration in one spouse caused by the conduct of other for a long time may lead to mental cruelty.

(v) A sustained course of abusive and humiliating treatment calculated to torture, discommode or render .

miserable life of the spouse.

(vi) Sustained unjustifiable conduct and behaviour of one spouse actually affecting physical and mental health of the other spouse. The treatment complained of and the resultant danger or apprehension must be very grave, substantial and weighty.

(vii) Sustained reprehensible conduct, studied neglect, indifference or total departure from the normal standard of conjugal kindness causing injury to mental health or deriving sadistic pleasure can also amount to mental cruelty.

(viii) The conduct must be much more than jealousy, selfishness, possessiveness, which causes unhappiness and dissatisfaction and emotional upset may not be a ground for grant of divorce on the ground of mental cruelty.

(ix) Mere trivial irritations, quarrels, normal wear and tear of the married life which happens in day to day life would not be adequate for grant of divorce on the ground of mental cruelty.

(x) The married life should be reviewed as a whole and a few isolated instances over a period of years will not amount to cruelty. The ill-

conduct must be persistent for a fairly lengthy period, where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, the wronged party finds it extremely difficult to live with the other party any longer, may amount to mental cruelty.

(xi) If a husband submits himself for an .

operation of sterilization without medical reasons and without the consent or knowledge of his wife and similarly if the wife undergoes vasectomy or abortion without medical reason or without the consent or knowledge of her husband, such an act of the spouse may lead to mental cruelty.

(xii) Unilateral decision of refusal to have intercourse for considerable period without there (xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty.

(xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty.

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties. In such like situations, it

may lead to mental cruelty."

decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty."

16. Now reverting to the facts of the present case. In order to prove his case, the petitioner appeared in the witness-box as PW-1 and tendered in evidence his affidavit, .

Ex. PW-1/A, wherein he reiterated almost all the averments made in the petition. The petitioner, in his cross-

examination, denied that the allegation against the respondent qua her illicit relation with Sanjay Bhardwaj was false. In support of his case, the petitioner also examined Shri Hira Lal, who appeared in the witness-box as PW-2 and tendered in evidence his affidavit, Ex. PW-2/A. This witness in her cross-examination feigned ignorance about the fact that before marriage the respondent was having any illicit relation with another person. He has stated that despite efforts made on their behalf, the respondent did not join the company of the petitioner. PW-3 Shri Swaran Singh, tendered in evidence his affidavit, Ex. PW-3/A, and in his cross-examination he stated that the respondent did not disclose as to why she was not interested in living in her matrimonial house. PW-4 Shri Uday Singh, also tendered in evidence his affidavit, Ex. PW-4/A, and he has stated that when he visited the house of the respondent, they were not allowed to enter into the house and there was no talk with the respondent.

17. On the other hand, respondent-Smt. Shiwani Jaswal stepped into the witness-box as RW-1 and tendered .

in evidence her affidavit Ex. RW-1/A. She has stated that after the marriage she started living in her matrimonial house and also started discharging all her obligations, but she was not treated nicely by the petitioner and her parents. She has further stated that she was being treated like a slave and tortured badly on the demand of a car as dowry. She further stated that when she was in her advance stage of pregnancy, she was turned out from her matrimonial house, thus she was compelled to live in her parents' house. On 09.04.2014 a male child was born at Sanjeevan Hospital, Mandi. As per RW-1 (respondent) the petitioner leveled false allegation of unchastity against her and also gave merciless beatings.

She has stated the neither she was having any relation with Sanjay Bhardwaj nor she talked with him on telephone. This witness, in her cross-examination, stated that in the month of March, 2016, she was left at her parents' home and since then she was living with her parents in their house. She has denied that she was living in the house of parents without any reason. She also denied that the petitioner made inquiry qua telephonic call with a stranger and she admitted that she wanted to perform marriage with Sanjay Bhardwaj and due to pressure of her parents she married the petitioner. She .

also stated that she was not ready to live in her matrimonial house as she was mentally tortured.

18. RW-2 Shri Amar Singh tendered in evidence his affidavit, Ex. RW-2/A. This witness deposed that the respondent was being tortured badly and the father of the respondent told him that the respondent was being harassed without any reason by the petitioner and his parents.

r He has deposed in his cross-examination that he never visited the house of the petitioner and only father of the respondent told him that the respondent was ill-treated by her in-laws on the demand of dowry.

19. We have closely scrutinized the entire evidence on record and after the close scrutiny of the evidence, we are of the view that the petitioner has failed to prove that the respondent has treated him with cruelty.

20. The petitioner has leveled the allegation of unchastity against the respondent that after a few days of the marriage he came to know that the respondent was having close relationship with a person who was not related to her in any manner and the respondent used to have telephonic chat in odd hours of night with that person. On inquiry, the petitioner was told by the respondent that she was not willing .

to marry the petitioner, rather she was willing to marry another person, namely Sanjay Bhardwaj, but her parents did not allow to do so, because Sanjay Bhardwaj belonged to another caste. Therefore, she solemnized the marriage with the petitioner under the pressure of her parents.

21. Though the petitioner has not pleaded in his petition that the respondent had admitted in writing about her relationship with Sanjay Bhardwaj, however, in the rejoinder the petitioner had pleaded that the respondent had even admitted in her own hand written application, which was proposed to be made by her to SHO, Police Station Sundernagar, but the petitioner in order to save the dignity and honor of the family had requested the respondent not to publicize the matter. In order to prove the aforesaid allegation, the petitioner has placed reliance upon one complaint, Ex.PW-1/B, stated to have been submitted by the respondent to SHO, Police Station Sundernagar, the perusal of which shows that the respondent allegedly made a complaint against Sanjay Bhardwaj to SHO, Police Station Sundernagar stating that earlier she was having relationship with him since the year 2009, but after the marriage in the year 2015 she severed all the relations with him, but even .

after the marriage the aforesaid Sanjay Bhardwaj used to call her on her mobile phone and also used to chat with her through whatsapp messages which was affecting her matrimonial life and in the complaint the respondent had allegedly requested SHO, Police Station Sundernagar to take action.

However, the petitioner has failed to prove the complaint, Ex.PW-1/B, in accordance with law.

r The petitioner has failed to prove on record that the complaint, Ex. PW-1/B, was in the hand of the respondent and was duly signed by her. The petitioner has failed to explain as to how this complaint, Ex. PW-1/B, came in his possession, particularly in view of the fact that it was addressed to SHO, Police Station Sundernagar. The aforesaid complaint was never put up to the respondent while she

appeared in the witness-box as RW-1. Therefore, no reliance can be placed upon the complaint, Ex.PW-1/B, which has not been proved by the petitioner in accordance with law.

22. The petitioner also tried to prove the whatsapp chat, Ex.PW-1/H and tendered in evidence certificate, Ex.

PW-1/J under Section 65 of the Indian Evidence Act.

However, the whatsapp chat, Ex. PW-1/H, has not been proved in accordance with law, as it failed to satisfy the .

conditions mentioned in Section 65(B) of the Indian Evidence Act. The petitioner has also placed reliance upon Pen Drive, Ex.PW-1/C, alleged to be containing two recordings pertaining to the talk between the respondent and her mother and respondent's father abusing the father of the petitioner and threatening him. However, the said recordings have not been proved in accordance with law, as it had also failed to satisfy the conditions mentioned in Section 65(B) of the Indian Evidence Act. PW-2-Hira Lal, who is the father of the petitioner, in his cross-examination, has shown ignorance that the respondent was having any illicit relation before her marriage with another person.

23. From the pleadings and the evidence on the record it is evident that the allegations made by the petitioner are false and baseless. No satisfactory and cogent evidence has been led by the petitioner to prove the allegations of the cruelty against his wife. In view of the aforesaid reasons, we are of the view that the petitioner had failed to establish his case in regard to allegation of cruelty, on which ground he sought the decree of divorce. Therefore, the findings of the learned Court below, in our considered view, do not suffer from any perversity or illegality.

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24. In view of what has been discussed hereinabove, the appeal, which sans merits, deserves dismissal and is accordingly dismissed. Pending applications, if any, shall also stand(s) disposed of.

(Tarlok Singh Chauhan) Judge (Sushil Kukreja) Judge 26th April, 2024 (virender)